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File No.: EXP202301070
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RESOLUTION OF ARCHIVING OF PROCEEDINGS

From the proceedings carried out by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: On January 17, 2023, a complaint was filed with entry registration number REGAGE23e00003379752 and REGAGE23e00003683484 before the Spanish Agency for Data Protection against VODAFONE ESPAÑA, S.A.U. with NIF A80907397 (hereinafter, the complained party). The reasons for the complaint are as follows:

The complainant files a complaint for receiving commercial calls on the line ***TELEFONO.1 registered in the Robinson List.

Along with the notification, the following is provided:

- Proof of registration in the Robinson list.
- Audio of a call received on January 13, 2023, to the complainant's mobile line from the number ***TELEFONO.2 where the caller indicates speaking on behalf of VODAFONE.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the aforementioned complaint was forwarded to the complained party for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was acknowledged on February 6, 2023, as evidenced by the acknowledgment of receipt in the file. On March 6, 2023, a response was received by this Agency indicating:

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After conducting the necessary checks, we have verified that the complainant's telephone line, ***TELEFONO.1, is listed in the official Robinson list of ADigital and in Vodafone's internal Robinson list.....

We have checked whether the calling numbers indicated in the information request are listed in our database with the telephone numbers used by our collaborators to make recruitment calls. To this end, we have verified that the numbers associated with our collaborators who make recruitment calls on behalf of Vodafone are not listed in our database. Therefore, it does not seem possible to relate the receipt of the calls that A.A.A. mentions in their complaint with my represented party.

In any case, we want to emphasize that, from Vodafone and as a consequence of the volume of complaints we have been receiving regarding commercial calls to potential customers, and upon verifying that in many cases, these calls have not been made as part of campaigns managed directly by Vodafone, we have implemented a corrective action plan specifically directed at our collaborators and distributors who carry out customer recruitment campaigns to ensure that they strictly comply with the instructions that Vodafone provides them when providing these services.”

THIRD: On March 7, 2023, in accordance with Article 65 of the LOPDGDD, the complaint filed was admitted for processing.

FOURTH: The General Subdirectorate of Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions of Title VII, Chapter I, Section two, of the LOPDGDD, having knowledge of the following aspects:

RESULT OF THE INVESTIGATIVE ACTIONS

As a result of the investigations carried out, the following information has been obtained:

- Through information obtained from the numbering registry on the page

<https://numeracionyoperadores.cnmc.es/portabilidad/fija>, it is verified that (document "Diligence 1"), as of the date of investigation of this file, the operators of the originating numbers of the calls were:

***TELEFONO.2 COLT TECHNOLOGY SERVICES, S.A.U.

***TELEFONO.3 COLT TECHNOLOGY SERVICES, S.A.U.

Information obtained from the number ***TELEFONO.2:

- From the response to the requests made, it is concluded that the flow of ownership of the telephone line was:

COLT TECHNOLOGY SERVICES, S.A.U. -> ACTIVO TI, S.L. -> TECH TELECOM -> NETVOISS (Peru)

In response dated 14/04/2023 and registration number REGAGE23e00024143109, ACTIVO TI S.L. informs that "the ownership of the telephone number

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***TELEPHONE.2, specifically on January 13, 2023, was assigned and represented by the company TECH TELECOM LEGAL SERVICES."

In response dated 07/06/2023 and registration number REGAGE23e00036583050, TECH TELECOM LEGAL SERVICES states:

"When the Spanish Agency for the Protection of Data made the information request directly to TECH TELECOM LEGAL SERVICES, S.L., we find it necessary to inform you that we are a company whose activity is specialized advisory on legal regulations in the Telecommunications sector. Within our services, we legally represent Resellers located outside the European Union in Spain. Under no circumstances is our activity the resale of electronic communications services (Telephone numbering) and much less the making of commercial calls or the development of advertising campaigns."

"We consulted on April 21 (information request prior to the present) with our represented parties, and they inform us that they have no connection whatsoever with the lines ***TELEPHONE.2 or ***TELEPHONE.3; nor do they have any commercial link with COLT TECHNOLOGY SERVICES, S.A."

In response to a new information request, ACTIVO replied on 22/06/2023 and registration number REGAGE23e00040853323, attaching a service contract with NET VOISS (Peru) whose representative is TECH TELECOM LEGAL SERVICES and also attaching a certificate of ownership in the name of TECH TELECOM LEGAL SERVICES.

A new information request was sent (date 23/06/2023 and registration number REGAGE23s00041252918) to TECH TELECOM SERVICES, legal representative of NETVOISS, requesting the ownership of the number ***TELEPHONE.2; the first notification expired due to non-receipt, and the second, via postal mail, has an acknowledgment of receipt dated 01/09/2023. As of the date of drafting this report, no response has been received.

COLT indicates that it has no record of such a call, ACTIVO states that there are no calls in its computer records, but MOVISTAR (the complainant's operator) confirms the receipt of this.

Information obtained from the number ***TELEPHONE.3:

- From the responses to the requests made, it is concluded that the flow of ownership of the telephone line was:

COLT TECHNOLOGY SERVICES, S.A.U. -> ACTIVO TI, S.L. -> TECH TELECOM -> NETVOISS (Peru)

In response dated 14/04/2023 and registration number REGAGE23e00024143109, ACTIVO TI S.L. informs that "the ownership of the telephone number ***TELEPHONE.3, specifically on January 13, 2023, was assigned and represented by the company TECH TELECOM LEGAL SERVICES."

In response dated 07/06/2023 and registration number REGAGE23e00036583050, TECH TELECOM LEGAL SERVICES states:

"When the Spanish Agency for the Protection of Data made the information request directly to TECH TELECOM LEGAL SERVICES, S.L., we find it necessary to inform you that we are a company whose

activity is specialized advisory on legal regulations in the Telecommunications sector. Within our services, we legally represent Resellers located outside the European Union in Spain. Under no circumstances is our activity the resale of electronic communications services (Telephone numbering) and much less the making of commercial calls or the development of advertising campaigns.”

“We consulted on April 21 (information request prior to the present) with our represented parties, and they inform us that they have no connection whatsoever with the lines ***TELEPHONE.2 or ***TELEPHONE.3; nor do they have any commercial link with COLT TECHNOLOGY SERVICES, S.A.”

In response to a new information request, ACTIVO replied on 22/06/2023 and registration number REGAGE23e00040853323, attaching a service contract with NET VOISS (Peru) whose representative is TECH TELECOM LEGAL SERVICES and also attaching a certificate of ownership in the name of TECH TELECOM LEGAL SERVICES.

A new information request was sent (date 23/06/2023 and registration number REGAGE23s00041252918) to TECH TELECOM SERVICES, legal representative of NETVOISS, requesting the ownership of the number ***TELEPHONE.2; the first notification expired due to non-receipt, and the second, via postal mail, has an acknowledgment of receipt dated 01/09/2023. As of the date of drafting this report, no response has been received.

COLT indicates that it has no record of such a call, ACTIVO states that there are no calls in its computer records, but MOVISTAR (the complainant's operator) confirms the receipt of this.

LEGAL GROUNDS

I

Competence

According to the provisions established in Article 114.1.b) of Law 11/2022, of June 28, General Telecommunications Law (hereinafter LGTel) and as provided in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), it is

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competent to resolve these investigative proceedings is the Director of the Spanish Agency for Data Protection.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

Finally, the Fourth Additional Provision "Procedure in relation to the competencies attributed to the Spanish Agency for Data Protection by other laws" establishes that: "The provisions of Title VIII and its development regulations shall apply to the procedures that the Spanish Agency for Data Protection must process in the exercise of the competencies attributed to it by other laws."

II

Final Provision Sixth, Section 2 of LGTel 11/2022

"The right of end users not to receive unwanted calls for commercial communication purposes as provided in Article 66.1.b) shall come into effect within one year from the publication of this law in the 'Official State Gazette'. Until that time, end users of publicly available interpersonal communication services based on numbering may continue to exercise the right to object to receiving unwanted calls for commercial communication purposes made through systems other than those established in Article 66.1.a) and to be informed of this right."

III

Conclusion

Through the actions carried out by this Agency, it has been learned that the calling phone numbers, on the dates when the calls were made, were assigned to TECH TELECOM LEGAL SERVICES, which

informs that it is a company whose activity is specialized advice on legal regulations in the Telecommunications sector and within its services legally represents in Spain Resellers located outside the European Union and that in no case is its activity the resale of communication services and much less the making of commercial calls or the development of advertising campaigns. TECH TELECOM indicates that it consulted its representatives NET VOISS, S.A.C (Peru) and that they claim to have no connection with these lines.

Thus, as it has not been possible to attribute responsibility for the making of the call and in accordance with what has been indicated by the Director of the Spanish Agency for Data Protection, IT IS

AGREED:

FIRST: TO PROCEED TO FILE these proceedings.

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SECOND: TO NOTIFY this resolution to VODAFONE ESPAÑA, S.A.U. and to the complainant.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the Fourth Additional Provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

940-020323

Mar España Martí

Director of the Spanish Agency for Data Protection

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